

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: September 22, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

ORDER GRANTING MOTION OF SEPTEMBER 18, 2025

On September 18, 2025, Orient Overseas Container Line Limited and OOCL (Europe) Limited (“OOCL”) filed an Unopposed Motion for Leave to File Amended Third-Party Complaint and Suspend Time to Respond to Third-Party Respondent’s Motion to Dismiss (the “September 18 Motion”).

On December 2, 2024, Complainant Samsung Electronics America, Inc. (“SEA”) filed its Verified Amended Complaint.

On December 12, 2024, OOCL filed its Verified Answer, which included a counterclaim against SEA. Also on December 12, 2024, OOCL filed a Third-Party Complaint that named Samsung Electronics Company, Ltd. (“SEC”) as a Third-Party Respondent. OOCL alleged that both parties violated 46 U.S.C. § 41102(a).

On March 31, 2025, the former Presiding Officer, Administrative Law Judge Alex M. Chintella, issued an Order Granting Complainant’s Motion to Dismiss Respondent’s Counterclaim (the “March 31 Order”).

On July 30, 2025, the Commission issued an Order Affirming Dismissal of Counterclaim, which affirmed the March 31 Order’s dismissal of the Counterclaim, but permitted OOCL to file an amended counterclaim (“July 30 Order”).

On August 13, 2025, OOCL filed Respondents' Amended Counterclaim, again alleging that SEA violated § 41102(a).

Also on August 13, 2025, SEC was served with the Third-Party Complaint by means of the Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters of November 15, 1965. (*See* Proof of Service on Third-Party Respondent Samsung Electronics Co., Ltd.).

On September 8, 2025, SEA filed Complainant's Motion to Dismiss Respondents' Amended Counterclaim.

Also on September 8, 2025, SEC filed Third-Party Respondent's Motion to Dismiss the Third-Party Complaint ("September 8 MTD").

The present September 18 Motion asks for the following: 1) that OOCL may be granted leave to file an amended third-party complaint within seven days; 2) allowing SEC to file an amended motion to dismiss twenty days later; 3) suspending OOCL's response to the September 8 MTD until after SEC files its amended motion to dismiss. The September 18 Motion represents that SEC does not oppose the September 19 Motion.

The September 18 Motion is **GRANTED**.

The Commission Rules give a presiding officer the discretion to allow an amended pleading. (46 C.F.R. § 502.66(a); *see also* 46 C.F.R. § 502.25(b)(1)). The Commission affirmed the March 31 Order dismissing the Counterclaim and permitted OOCL to amend its counterclaim. (*See* July 30 Order). I have noted previously that the OOCL's December 12, 2024, Counterclaim, which was dismissed, and December 12, 2024, Third-Party Complaint were very similar. (*See* Order Granting OOCL's Motion for Reconsideration, and Denying SEC's Motion to Dismiss Third Party Complaint, OOCL's Motion for Alternative Service, OOCL's Motion for Enlargement, and SEC's Motion for an Order Preserving Defense ("July 10 Order"), at 7). Therefore, I find that OOCL should be afforded the opportunity to amend its Third-Party Complaint, just as the Commission gave OOCL the opportunity to amend the Counterclaim.

The Commission Rules also generally give the presiding officer the authority to regulate a proceeding. (46 C.F.R. § 502.25). Considering that an amended third-party complaint is forthcoming, I will not require OOCL to respond to the September 8 MTD until after SEC first files an amended motion to dismiss that addresses the amended third-party complaint. That way, the parties will be required to file fewer briefs.

Accordingly, it is **HEREBY ORDERED** that OOCL may file an Amended Third-Party Complaint no later than **September 29, 2025**. It is

FURTHER ORDERED that SEC may file an Amended Motion to Dismiss the Amended Third-Party Complaint no later than **October 20, 2025**. It is

FURTHER ORDERED that OOCL may file a response to the Amended Motion to Dismiss the Amended Third-Party Complaint no later than **November 4, 2025**. It is

FURTHER ORDERED that SEC may file a reply in support of its Amended Motion to Dismiss the Amended Third-Party Complaint no later than **November 12, 2025**.¹

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
Date: 2025.09.22
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Richard Ambrow
Administrative Law Judge

¹ Replies are typically due within seven days of a response. (46 C.F.R. § 502.70(d)). November 11, 2025, however, is a holiday. Therefore, the response deadline is moved to the next business day. (46 C.F.R. § 502.101).